

**CLEAR FORM**MONTANA
POA
Rev 10 19

Power of Attorney Authorization to Disclose Information

File online at <https://tap.dor.mt.gov>.

PART I

Caution! Taxpayers who would like to designate someone else to represent them before the Department of Revenue must complete and submit this form. Spouses filing a joint return must each complete a separate form.

This form will not be honored for any purpose other than representation before the Department of Revenue. This form cannot be used for any purpose other than designating representation before the Department of Revenue.

Notice: The department will accept a completed federal form 2848 as a power of attorney for representation before the Department of Revenue if Part I, Section 3, Matters, includes the tax type, the tax form number and year(s) or period(s) that the representative is authorized to discuss with the department. If you use the federal form, you must provide a copy to the Department of Revenue.

- 1. Taxpayer Information.** Taxpayers must sign and date this power of attorney form on page 2, section 6.

Taxpayer Name and Address	Taxpayer Identification Number(s)
	Telephone Number

hereby appoints the following representative(s) as attorney(s)-in-fact:

- 2. Representative(s)**

Name and Address	PTIN
	Telephone Number
	FAX Number
	Email Address
Name and Address	PTIN
	Telephone Number
	FAX Number
	Email Address

to represent the taxpayer before the Montana Department of Revenue for the following matters:

- 3. Tax Matters and Tax Years Covered by This Form**

Your representative is authorized to inspect, receive and discuss confidential information for the tax types and tax years you authorize by checking the appropriate boxes below and inserting the specific tax years. If tax matters and tax periods are not specified, you are authorizing the representative access to all tax matters and years until you revoke such authorization.

	<i>Provide specific tax years</i>		<i>Provide specific tax years</i>
☐ Individual Income Tax	_____	☐ Rental Vehicle Tax	_____
☐ Corporation Income Tax	_____	☐ Withholding Tax	_____
☐ S Corporation	_____	☐ Lodging Facilities Tax	_____
☐ Partnership	_____	☐ Combined Oil and Gas Tax	_____
		☐ Other, please specify below	_____

4. Acts Authorized by This Form

Check the box that best describes what authorization you are delegating to your representative.

- ☐ Representation. Department employees can provide confidential information to the representative and discuss the information.
- ☐ Information sharing. Department employees can provide confidential information to the representative, but cannot discuss the information.
- ☐ Decision-making authority. Department employees can provide confidential information to a representative, can discuss the information and the representative can act on the taxpayer's behalf for all purposes, including settlement and waiver of appeal rights.

5. Revocation of Prior Power(s) of Attorney

- ☐ Check this box if you want all prior POAs revoked.

If you are a representative and want to withdraw an existing POA, write WITHDRAW across the top of the existing form. See instructions on page 3.

6. Signature of taxpayer.

If a tax matter concerns a year in which a joint return was filed, the spouses each file a separate power of attorney even if the same representative(s) is(are) appointed. If signed by a corporate officer, partner, guardian, tax matters partner, executor, receiver, administrator, fiduciary or trustee on behalf of the taxpayer, I certify that I have the authority to execute this form on behalf of the taxpayer.

If not signed and dated, this power of attorney will not be in effect and the taxpayer will be notified.

_____ Signature	_____ Date	_____ Title (if applicable)
_____ Print Name	_____ Print Taxpayer Name from Line 1 (if other than individual)	

PART II. Declaration of Representative

I declare that:

- I am authorized to represent the taxpayer identified in Part I for the matter(s) specified there; and
- I am one of the following:
 - a. Attorney - licensed to practice law in the jurisdiction shown below.
 - b. Certified Public Accountant - duly qualified to practice as a certified public accountant in the jurisdiction shown below.
 - c. Enrolled Agent or Licensed Public Accountant, etc.
 - d. Officer - a bona fide officer of the taxpayer's organization.
 - e. Full time employee - a full time employee of the taxpayer.
 - f. Family member - a member of the taxpayer's immediate family (for example, spouse, parent, child, grandparent, step-parent, step-child, brother or sister).
 - g. Other

Representative Signature. See instructions on page 4.

Designation - Insert Letter from Above (a-g)	Relationship to Taxpayer (see instructions for Part II)	Signature	Date

Filing this Form

► **File Online on TransAction Portal** at <https://tap.dor.mt.gov>.

► **Fax to:** (406) 444-7723.

Or, if you are already working with a department employee, fax your completed form to the number provided by that person.

► **Mail the completed form to:**

Montana Department of Revenue
340 N. Last Chance Gulch
PO Box 5805
Helena, MT 59604-5805